

MUTUAL CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

THIS AGREEMENT (the "Agreement") is entered into as of _____ by and between the Companies whose representatives' signatures appear below (separately referred to as "Party" or jointly as "Parties").

NOW, THEREFORE, in consideration of the mutual covenants and conditions set forth herein, the Parties agree as follows:

1. **Definition of Confidential Information.** For the purposes of this Agreement, "Confidential Information" shall mean any information disclosed by any one of the Parties to any other of the Parties, in the following forms:
 - a) if in written, graphic, machine-readable or any other tangible medium, including without limitation data, designs, memoranda, models, prototypes, hardware, tools or tooling technology, to the extent marked with a "confidential," "proprietary" or similar legend; or
 - b) if originally disclosed orally or by way of observation, to the extent identified as Confidential Information at the time of such original disclosure and to the extent summarized in reasonable detail and confirmed as being Confidential Information in a written notice delivered to the receiving Party within 30 days after original disclosure, which notice includes a reference to the date of the original disclosure and a reference to this Agreement.
2. **Exceptions.** Confidential Information shall not include information, which through no act of the receiving Party, is or becomes available in the public domain.
3. **Obligations.** Each Party shall:
 - a) treat Confidential Information of the other Party with the same degree of confidentiality with which it treats its own Confidential Information (except that it shall not release such Confidential Information pursuant to this or any other Agreement), and in no case less than a reasonable degree of confidentiality;
 - b) use Confidential Information only for the purposes of determining whether the Parties will pursue further negotiations with each other, and as otherwise may be agreed upon in the performance of obligations under subsequent agreements between the Parties, if any;
 - c) not copy Confidential Information, in whole or in part, except as required in furtherance of the uses thereof permitted by this Agreement, and except with accurate reproduction of all proprietary legends and notices located in the originals;
 - d) limit dissemination of Confidential Information received from other Party to only those of its employees and outside consultants who have a need to know the Confidential Information in furtherance of the Confidential Information received in written or other tangible media, including all copies and records thereof, upon any request by the disclosing Party, except for a single set of copies which receiving Party may retain solely as an archival record of materials submitted.
4. **Legally Required Disclosure.** If a Party or any of its representatives becomes legally compelled to disclose any Confidential Information of any other Party, the receiving Party shall provide the disclosing Party with prompt notice of such requirement and shall cooperate with the disclosing Party in seeking to obtain a protective order or other arrangement pursuant to which the confidentiality of the Confidential Information is preserved. If such an order or arrangement is not obtained, the receiving Party agrees that it and its representatives will disclose only that portion of the Confidential Information as is legally required. Any legally compelled disclosure shall not, in and of itself, change the status of the disclosed information as Confidential Information under the terms of this Agreement.
5. **Errors and Omissions.** Nothing in this Agreement shall be construed to impose on a disclosing Party any liability or responsibility for errors or omissions in, or any business decisions made by the receiving Party in reliance on, any Confidential Information disclosed under this Agreement.
6. **Term.** This Agreement shall commence on the date first above written and shall continue in effect for a period of three years from the date of separation from company".
7. **Survival.** The restrictions and obligations of Paragraph 3 of this Agreement shall survive the expiration of this Agreement, and shall continue to bind the Parties, their successors, heirs and assignees, for a period of one year after the date of expiration.
8. **Ownership of Confidential Information.** Each of the Parties acknowledges that Confidential Information of any of the other Party's is and shall remain the exclusive property and a valuable trade secret of the other Party, and is disclosed by the other Party subject to the other Party's ownership rights.
9. **No Agency.** Neither this Agreement nor the disclosure or receipt of Confidential Information shall constitute or imply any promise or intention to enter into a partnership, agency, employment or joint venture relationship between the Parties, to make or purchase any products or services by any Party or to make any commitment by any Party with respect to the present or future marketing of any product or service.
10. **No Assignment.** No Party may assign any of its rights or delegate any of its obligations under this agreement, except upon the prior written consent of all the other Parties.
11. **Equitable Relief.** Each Party acknowledges that the disclosing Party would be irreparably injured by a breach of this

Agreement by the receiving Party, and that a disclosing Party, in addition to any other remedies available at law or in equity, shall be entitled relief, including injunctive relief and specific performance, in the event of any breach of the provisions of this Agreement by the receiving Party.

12. Invalid Provisions. If any provision of this Agreement is held to be illegal, invalid or unenforceable, such provision shall be fully severable and this Agreement shall be construed and enforced as if such illegal, invalid or unenforceable provision had never been a part of this Agreement.
13. Notices. Any notices or other communications contemplated or required under this Agreement, in order to be valid, shall be in writing and shall be given via personal delivery or via Mail, overnight carrier or fax. Such notices or other communications shall be deemed given when actually delivered or, if earlier, three business days after mailing.
14. Integration. This Agreement supersedes all previous oral and written agreements, if any, between the Parties regarding the confidentiality of information disclosed to each other.
15. Governing Law. This Agreement will be construed and enforced in accordance with the laws of the Philippines.
16. Counterparts. This Agreement may be executed in one or more counterparts, all of which, taken together, shall constitute the Agreement.

IN WITNESS WHEREOF, the Parties have entered into this Agreement effective as of the date above written.

EMPLOYEE	COMPANY
Name	EmpireOne BPO Solutions Inc
By: Signature	By:  ANTHONY S. ARAGON
Designation:	Designation: HR Director
Date Signed:	